

25PR00598 Guardianship of Nevaeh Rae Olson

County: santa-barbara

Division: Guardianship

Hearing date: 2026-01-28

Motion: Petitions to Appoint Guardian of Person

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Tentative Ruling: Guardianship of Nevaeh Rae Olson

Case Number

25PR00598

Case Type

Guardianship

Hearing Date / Time

Wed, 01/28/2026 - 09:30

Nature of Proceedings

Petitions to Appoint Guardian of Person

Tentative Ruling

Probate Notes:

Appearances required. The following must be submitted:

Proof of Personal Service. Proof of timely personal service of the notice of hearing and a copy of the petition (Prob. Code, § 1511) on parents of proposed ward, and the proposed ward, OR Consent to Appointment of Guardian and Waiver of Notice (Judicial Council form GC-211) OR adequately supported request to dispense with notice (CRC 7.52; see Local Court form SC-6014).

Proof of Timely Mailed Service. Proof of timely mailed service of the notice of hearing and a copy of the petition (Prob. Code, § 1511) on paternal grandparents, OR Consent to Appointment of Guardian and Waiver of Notice (Judicial Council form GC-211) OR adequately supported request to dispense with notice (CRC 7.52; see Local Court form SC-6014).

Adequate ICWA Inquiry. Inquiry on both sides of the family is required. (CRC, Rule 5.481(a).) The parents and/or Indian custodian or other guardian of the child must, if possible, complete the Parental Notification of Indian Status (form ICWA-020). If the parents are available, this can be done before the first hearing. If not done before the first hearing and these people appear at the hearing, the court should order the parents, Indian custodian, or guardian to complete form ICWA-020 at that time. If form ICWA-020 is not yet completed and the parents and/or Indian custodian or guardian do not appear at the first hearing, the court will order the petitioners to use reasonable diligence to find the parents, Indian custodian, or guardian; advise them that the court has ordered them to complete form ICWA-020; and have them complete the form.

If, after the use of reasonable diligence, the petitioner is not able to have the parents, Indian custodian, or guardian complete form ICWA-020 and a court investigator is appointed, the court investigator should make every effort to have the parents, Indian custodian, or guardian complete form ICWA-020. (Welf. & Inst. Code, § 224.2; Prob. Code, § 1459.5(b); Cal Rules of Court, rules 5.481(a)(1), 7.1015(c).)

Appearances:

The court is open to the public for court business. The court is also conducting hearings via Zoom videoconference.

Meeting ID: 161 956 1423

Passcode: 137305

Judges

Judge Patricia Kelly

SM Dept 1

312-M East Cook St. Building E

Santa Maria, CA 93454-5165

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